

PART III.

1. Session and Chapter.	2. Short Title.	3. How far continued.	4. Amending Acts.
(23) 10 & 11 Geo.5. c. 29.	The Overseas Trade (Credits and In- surance) Act, 1920.	As to the powers of the Board of Trade with re- spect to the granting of credits and the giving of new guarantees.	11 & 12 Geo.5. c. 26. 11 & 12 Geo.5. c. 65. 13 Geo. 5. (Sess. 2) c. 4.

PART IV.

(24) 59 & 60 Vict. c. 16.	The Agricultural Rates Act, 1896.	The whole Act -	2 Edw. 7. c. 42. 7 Edw. 7. c. 13.
(25) 59 & 60 Vict. c. 37.	The Agricultural Rates, Congested Districts, and Burgh Land Tax Relief (Scotland) Act, 1896.	The whole Act -	60 & 61 Vict. c. 53. 7 Edw. 7. c. 13. 1 & 2 Geo. 5. c. 49.

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## CHAPTER 38.

An Act to amend the law relating to the education  
of children who are receiving education in an  
area other than that to which they belong.

[2nd August 1923.]

**B**E it enacted by the King's most Excellent Majesty,  
by and with the advice and consent of the Lords  
Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where in England or Wales children who are resident in a workhouse or in an institution to which they have been sent by a board of guardians from a workhouse or boarded out by the guardians, or resident in a charitable institution, attend as day scholars a public elementary school or a school certified by the Board of Education under Part V. of the Education Act, 1921, maintained by a local education authority for elementary education of an area other than the area to which the children belong, the local education authority of the area to which the children belong shall, if required so to do by the local education authority of the area in which the children are educated, pay to that authority in respect of each such child during the period of attendance—

Contributions in respect of children not belonging to area in which they attend school.  
11 & 12 Geo. 5.  
c. 51.

- (a) in the case of a child attending a public elementary school (not being a school so certified), a sum calculated by reference to the average net cost, falling to be met from the rates, in the last preceding financial year of educating children in public elementary schools in the last-mentioned area; and
- (b) in the case of a child attending a school so certified, a sum calculated by reference to the average net cost, falling to be met from the rates, in the last preceding financial year of educating children in schools in the last-mentioned area of the same type as the school which the child attends.

(2) For the purposes of this section, a child who is resident in a workhouse or in an institution to which he has been sent by the guardians from a workhouse or boarded out by the guardians shall be deemed to belong to the area in which his place of settlement is situated, and a child resident in a charitable institution shall be deemed to belong—

- (i) to the area in England and Wales in which he last resided for a continuous period of six months otherwise than in a charitable institution; or

- (ii) if it cannot be ascertained that he has so resided in any area for six months, the area, being an area in England and Wales, in which he was born; or
- (iii) if the Board of Education are of opinion that the area to which he belongs cannot be ascertained under paragraphs (i) and (ii), such area as the Board of Education may determine having regard to all the circumstances of the case.

(3) The guardians or the managers of the charitable institution, as the case may be, shall furnish to the local education authority of the area in which the children are educated such information as may be necessary in order to enable that authority to determine for the purposes of this section to what area children educated in public elementary schools or schools certified under Part V. of the Education Act, 1921, belong.

(4) For the purposes of this section, a charitable institution shall include any place in which persons are boarded and lodged from motives of charity, but shall not include any place in which less than twelve children between the ages of five and fourteen are so boarded and lodged.

(5) If any question arises as to the amount payable under this section, or as to the area to which a child resident in a charitable institution belongs, or as to whether a child is resident in a charitable institution within the meaning of this section, that question shall be referred to the Board of Education and the decision of the Board shall be final.

(6) Any sum payable under this section shall be recoverable as a debt due to the authority to whom it is payable, and the Board of Education may, if they think fit, without prejudice to any other remedy on the part of that authority, pay any such sum to the authority to whom it is payable and deduct any sums so paid from any sums payable to the authority by whom it is payable on account of Parliamentary Grants.

(7) No sum shall be payable under this section unless a claim for payment is made within two years after the end of the financial year during which the attendances on which the claim is based were made.

2.—(1) Nothing in Part V. of the Education Act, 1921, shall be construed as imposing a duty on a local education authority to receive as boarders in a boarding school provided by them and certified under that part of that Act—

Contributions in respect of children attending schools certified under Part V. of Act of 1921.

- (a) children who are resident in a workhouse or in an institution to which they have been sent by a board of guardians from a workhouse or boarded out by such guardians;
- (b) children who belong to the area of another local education authority;

unless the guardians or the other local education authority, as the case may be, are willing to contribute towards the expense of the education and maintenance of the children such sum as may be agreed on between the authorities concerned.

(2) For the purposes of this section, the question to what area a child belongs shall be determined in the manner in which under the last preceding section the question to what area a child resident in a charitable institution belongs is determined: Provided that in the case of a child educated as a boarder in a boarding school so certified the local education authority who are making provision for his education shall continue liable to make such provision pending the determination of any question which may arise as to the area to which he belongs.

(3) Section one hundred and twenty-eight of the Education Act, 1921, shall apply to children receiving education as day scholars in schools certified under Part V. of the Education Act, 1921, and provided by a local education authority, as it applies to children receiving education in public elementary schools.

(4) Paragraphs (b) and (c) of subsection (2) and subsection (4) of section fifty-two, subsection (4) of section fifty-six and sections fifty-nine and sixty of the Education Act, 1921, are hereby repealed.

3.—(1) This Act may be cited as the Education (Institution Children) Act, 1923.

Short title and commencement.

(2) The Education Act, 1921, and this Act may be cited together as the Education Acts, 1921 and 1923.

(3) This Act shall be deemed to have had effect as from the first day of April, nineteen hundred and twenty-three.

## CHAPTER 39.

An Act to amend the law relating to the relief from rates to be given in respect of agricultural land in England and agricultural land and heritages in Scotland, and for purposes in connection therewith. [2nd August 1923.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Further exemption of agricultural land in England from rates. 59 & 60 Vict. c. 16.

**1.**—(1) During the continuance of this Act, section one of the Agricultural Rates Act, 1896 (hereinafter in this Act referred to as “the principal Act”), which provides that an occupier of agricultural land in England shall, in the case of every rate to which that Act applies, be liable to pay one half only of the rate in the pound payable in respect of buildings and other hereditaments, shall have effect as if for the references in that section to “one half” there were substituted references to “one quarter”:

Provided that, notwithstanding any provision contained in any other enactment for assessing agricultural land to any rate at less than the rateable value thereof or otherwise giving relief in respect of any rate to occupiers of agricultural land, an occupier of agricultural land shall not, as compared with an occupier of buildings or other hereditaments, pay any rate in a less proportion than one-quarter.